

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS----- X
MARTIN BROWN,

SUMMONS

Plaintiff,

Index No.:

-against-

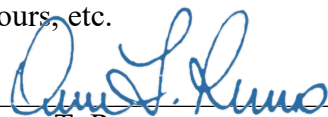
The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE OFFICER
GEORGE H. SPRAGUE, Shield No. 11922, NYPD
POLICE SERGEANT GIANFRANCO BERLINGERIO,
Shield No. 1967, and NYPD POLICE OFFICERS JOHN
AND JANE DOES NUMBERS ONE THROUGH TEN,Plaintiff designates Queens
County as the place of trial.Defendants.
----- X

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 7, 2024

Yours, etc.



Omar T. Russo

Shulman-Hill, PLLC

*Attorneys for Plaintiff*1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER GEORGE H. SPRAGUE, Shield No. 11922, 113th Precinct, 167-02 Baisley Boulevard, Queens, New York 11434

NYPD POLICE SERGEANT GIANFRANCO BERLINGERIO, Shield No. 1967, 105th Precinct, 92-08 222nd Street, Queens, New York 11428

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

MARTIN BROWN,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
GEORGE H. SPRAGUE, Shield No. 11922, NYPD
POLICE SERGEANT GIANFRANCO BERLINGERIO,
Shield No. 1967, and NYPD POLICE OFFICERS JOHN
AND JANE DOES NUMBERS ONE THROUGH TEN,

Plaintiff designates Queens
County as the place of trial.

Defendants.

----- X

Plaintiff, MARTIN BROWN, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 29, 2023, at approximately 9:00 p.m., Plaintiff, while lawfully at or around South Conduit near to Farmers Boulevard, County of Queens, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant police officers. Plaintiff was subjected to the use of excessive force in his unlawful arrest, as well as suffered physical, mental, and emotional injury as a result. Plaintiff was subjected to approximately two (2) days in unlawful police custody while within the intensive care unit at Jamaica Hospital. Plaintiff was thereafter released on his own recognizance as upon information and belief, the Queens County District Attorney declined to prosecute him, as he had committed no crime. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and fabricated evidence against Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff, Martin Brown, is a resident of the state of New York.

3. NYPD POLICE OFFICER GEORGE H. SPRAGUE, Shield No. 11922, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. At all times relevant herein, NYPD POLICE OFFICER GEORGE H. SPRAGUE, Shield No. 11922, was assigned to the NYPD 113th Precinct.

5. NYPD POLICE OFFICER GEORGE H. SPRAGUE, Shield No. 11922, is being sued in his individual and official capacities.

6. NYPD POLICE SERGEANT GIANFRANCO BERLINGERIO, Shield No. 1967, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. At all times relevant herein, NYPD POLICE SERGEANT GIANFRANCO BERLINGERIO, Shield No. 1967, was assigned to the NYPD 105th Precinct.

8. NYPD POLICE SERGEANT GIANFRANCO BERLINGERIO, Shield No. 1967, is being sued in his individual and official capacities.

9. New York City Police Officers John and Jane Does Numbers 1-10 were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. New York City Police Officers John and Jane Does Numbers 1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On August 29, 2023, at approximately 9:00 P.M., Plaintiff was lawfully in the vicinity of South Conduit and Farmers Boulevard, County of Queens, State of New York, when

he was subjected to an unlawful stop, question, frisk, search, false arrest, false imprisonment, and denial of various federal constitutional rights by the defendant NYPD police officers.

15. At the referenced place and time, Plaintiff was driving on South Conduit, in violation of no law, regulation, ordinance, or lawful order.

16. The defendant officers were, upon information and belief, driving an unmarked vehicle.

17. The defendant officers recklessly, in disregard for his safety or the safety of the other motorists, cut in front of Plaintiff creating imminent danger.

18. Plaintiff, attempted to avoid the collision hit his brakes and took action to evade the oncoming unmarked vehicle.

19. As a result of the conditions created by the defendant officers' dangerous conduct, Plaintiff's vehicle became uncontrollable and flipped, striking the guardrail.

20. When the vehicle came to a stop Plaintiff attempted to crawl out, at which point he was met with defendant officers violently grabbing him and pressing their knees into his back.

21. Plaintiff did not resist arrest.

22. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did defendant NYPD police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

23. At no point did defendant NYPD police officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

24. Nevertheless, Plaintiff was unlawfully arrested by defendant officers, restrained with metal handcuffs, regardless of the fact that he lay bleeding profusely on the ground.

25. Plaintiff was profusely bleeding from the left arm and begged the defendant officers to place a tourniquet instead of assaulting him.

26. Finally, after multiple requests, one defendant officer placed a tourniquet on Plaintiff's arm as they await the ambulance's arrival.

27. Plaintiff was transported to Jamaica hospital where he was examined and admitted for treatment.

28. Examination and diagnostic imaging revealed numerous fractures to his forearm, wrist, and fingers.

29. Plaintiff, who was shackled and under the custody of the police while at Jamaica hospital, lost consciousness several times as a result of the physical trauma.

30. After approximately two (2) days at Jamaica Hospital in police custody, Plaintiff was officially released from custody when police finally left him in the hospital.

31. Plaintiff would remain at Jamaica Hospital for several additional days where he would undergo invasive surgery to repair the damage that had been done.

32. Upon information and belief, on or about August 31, 2023, the Queens County District Attorney declined to prosecute the Plaintiff, as he committed no crime.

33. Since his release from custody, Plaintiff has undergone approximately five (5) additional surgeries, as well as further treatments and therapies.

34. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

35. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

66. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

70. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

False Arrest/False Imprisonment

73. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. The use of excessive force by defendants by, amongst other things, blocking his vehicle and causing him to crash into a guardrail, and intentionally kneeling into his back and extremities despite his obvious injuries and incapacitation, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION**Failure to Intervene**

79. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. Defendants failed to intervene to prevent the unlawful conduct described herein.

82. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

83. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Violation of Fourth and Fourteenth Amendment Rights:****Denial of Right to Fair Trial/Due Process**

85. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

89. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth

Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

91. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

92. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

93. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

94. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

95. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

66. The foregoing accident and the resulting injuries to Plaintiff were caused solely by reason of the carelessness, negligence, and willful disregard to safety and traffic laws on the part of the defendants.

67. Defendants were negligent in the operation, maintenance, management, and control of their motor vehicle, in causing, permitting and allowing it to come in contact with or immediately near Plaintiff's vehicle; in failing to give due and proper warning of the movements of their said motor vehicle in order to avoid the accident; in operating their motor vehicle at an excessive rate of speed; in hiring defendant; failing to keep proper lookout upon the roadway; and in so operating the said motor vehicle as to cause the same to create such a dangerous condition as to cause Plaintiff's accident and resulting injuries.

JURY DEMAND

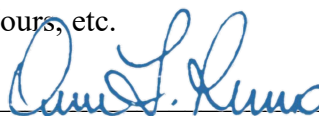
68. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff MARTIN BROWN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
February 7, 2024

Yours, etc.



Omar T. Russo
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER GEORGE H. SPRAGUE, Shield No. 11922, 113th Precinct, 167-02 Baisley Boulevard, Queens, New York 11434

NYPD POLICE SERGEANT GIANFRANCO BERLINGERIO, Shield No. 1967, 105th Precinct, 92-08 222nd Street, Queens, New York 11428

ATTORNEY'S VERIFICATION

OMAR T. RUSSO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 7, 2024



OMAR T. RUSSO